

		267, 280-281; <i>United Parcel Service Wage & Hour Cases</i> (2010) 190 Cal.App.4th 1001, 1018.) Counsel shall give notice of this ruling in the manner ordered by the court.
8	Othman vs. Monetiva Inc 30-2025-01511444	<u>Motion to Confirm Validity of Service</u> Plaintiff Tarek Othman's Motion to Confirm Validity of Prior Service on Defendant EndlessOne Global Inc. Via Nevada Secretary of State Pursuant to Nev. Rev. Stat. § 14.030 is DENIED. Plaintiff Tarek Othman's Motion for Ordering [sic] Authorizing Service of Defendant EndlessOne Global Inc. Via Nevada [or California] Secretary of State is GRANTED. The court FINDS that Plaintiff Tarek Othman has validly served Defendant EndlessOne Global Inc. through the Nevada Secretary of State pursuant to Nevada Revised Statutes section 14.030. The court ORDERS that service may be effectuated upon Defendant EndlessOne Global Inc. by personal delivery to the California Secretary of State or to an assistant or deputy secretary of state of one copy of the process and this order. The court further ORDERS that California Secretary of State or her agents shall send the process to EndlessOne Global Inc., 1800 East Century Park, Suite 600, Century City, CA 90067. <u>Pending Motion</u> Plaintiff Tarek Othman moves to confirm the validity of Plaintiff's December 4, 2025 service of the Summons and Complaint on Defendant EndlessOne Global Inc. (Defendant EndlessOne) effectuated via the Nevada Secretary of State on December 4, 2025. In the alternative, Plaintiff moves for an order authorizing service of the Summons and Complaint on Defendant EndlessOne via the Nevada Secretary of State and/or the California Secretary of State.

		<u>Prior Service of Process</u> Civil Procedure Code section 413.10 states that “a summons shall be served on a person . . . [o]utside this state but within the United States, as provided in this chapter or as prescribed by the law of the place where the person is served.” (Code Civ. Proc., § 413.10, subd. (b).) Here, Plaintiff purported to serve Defendant EndlessOne in Nevada. (See ROA #19.) Nevada Revised Statutes section 14.030 provides that when a corporation fails to appoint a registered agent, “Plaintiff must first file an affidavit ‘setting forth the facts, showing that due diligence has been used to ascertain the whereabouts of the officers of the artificial person to be served, and the facts showing that direct or personal service on, or notice to, the artificial person cannot be had.’” (<i>LG Capital Funding, LLC v. Worthington Energy, Inc.</i> (E.D.N.Y., Feb. 20, 2018, No. 16CV6288NGGST) 2018 WL 1370266, at p. *3, quoting Nev. Rev. Stat. Ann. § 14.030(3).) After filing the affidavit, Plaintiff must provide the Nevada Secretary of State with: “(1) a certificate of Nevada’s Secretary of State showing a failure to appoint a registered agent; (2) a payment of a \$10 fee; and (3) a copy of the legal process service with a citation to the relevant statute.” (<i>Ibid.</i>, citing Nev. Rev. State. Ann. § 14.030(1).) Once a plaintiff has served the Secretary of State in this manner, “Plaintiff must also mail the documents to the last known address of the corporation or one of its officers, if known, by registered or certified mail.” (<i>Ibid.</i>, citing Nev. Rev. State. Ann. § 14.030(4).) Here, Plaintiff presents evidence that Defendant EndlessOne’s registered agent for service of process resigned on September 26, 2022, and that Defendant EndlessOne did not thereafter designate a new registered agent as required by Nevada Revised Statutes section 14.020. (See Decl. of Michelle J. Correll (Correll Decl.), ¶¶ 2-3, Exh.s 1-2.) Nevada Secretary of State records identify Najwa Karkaji and Nabil Bader as Defendant
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		EndlessOne's last-named officers. (See <i>id.</i>, ¶ 2, Exh. 1; Decl. of George Franco (Franco Decl.), ¶ 2.) Plaintiff submitted declarations indicating that Plaintiff unsuccessfully attempted to locate and personally serve Karkaji and Bader. (See Correll Decl., ¶¶ 5-6, Exh. 3; Franco Decl., ¶¶ 3-4.) Plaintiff also filed an affidavit of due diligence pursuant to Nevada Revised Statutes section 14.030, stating that Plaintiff attempted to locate and personally serve Karkaji and Bader but was unsuccessful. (See ROA #12; Correll Decl., ¶ 7, Exh. 4.) On December 4, 2025, Plaintiff served the Summons and Complaint on Defendant EndlessOne by delivering a copy to the Nevada Secretary of State. (See <i>id.</i>, ¶ 8, Exh. 5.) Plaintiff also mailed copies of the Summons and Complaint to Defendant EndlessOne, Karkaji, and Bader at their last-known addresses. (See ROA #21; Correll Decl., ¶ 9, Exh. 6.) However, Plaintiff did not present evidence that Plaintiff had served on the Nevada Secretary of State a certificate showing Defendant EndlessOne's failure to appoint a registered agent or failure to file a statement of change of registered agent. (See <i>id.</i>, ¶ 8, Exh. 5.) Instead, Plaintiff provides evidence that the state of Nevada does not issue such a certificate and that it is sufficient for Plaintiff to send the Nevada Secretary of State the documents to be served, an affidavit of due diligence, and the \$10 fee. (See Supp. Decl. of Michelle J. Correll in Supp. of Plt.'s Mot to Confirm Validity of Prior Service of Def. EndlessOne (Supp. Correll Decl.), ¶¶ 4-5, Exh. 8.) Plaintiff also submits evidence that it complied with the Nevada Secretary of State's instructions, including paying the \$10 fee, and that Plaintiff's submission was accepted by the Nevada Secretary of State. (See <i>id.</i>, ¶¶ 6-11, Exh.s 5, 9-10.) Therefore, Plaintiff has established that it complied with Nevada Revised Statute section 14.030 and the court will grant the motion to confirm validity of the service effectuated on December 4, 2025.
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		<u>Order to Serve Nevada or California Secretary of State</u> In the alternative, Plaintiff seeks an order allowing service on the Nevada Secretary of State or the California Secretary of State. Here, Nevada Revised Statute section 14.030 does not appear to require a prior court order to effectuate service pursuant to its provisions. However, California Corporations Code section 2111 provides that: If the agent designated for the service of process is a natural person and cannot be found with due diligence at the address stated in the designation or if the agent is a corporation and no person can be found with due diligence to whom the delivery authorized by Section 2110 may be made for the purpose of delivery to the corporate agent, or if the agent designated is no longer authorized to act, or if no agent has been designated and if no one of the officers or agents of the corporation specified in Section 2110 can be found after diligent search and it is so shown by affidavit to the satisfaction of the court, then the court may make an order that service be made by personal delivery to the Secretary of State or to an assistant or deputy secretary of state of two copies of the process together with two copies of the order, except that if the corporation to be served has not filed the statement required to be filed by Section 2105 then only one copy of the process and order need be delivered but the order shall include and set forth an address to which the process shall be sent by the Secretary of State. (Corp. Code, § 2111, subd. (a).) (fn.1) (fn.1) Corporations Code section 2110 controls service of process upon a foreign corporation so that it is implied that Corporations Code section 2111 also applies to foreign corporations. There is a provision that is analogous to Section 2111 that applies to domestic corporations. (See Corp. Code, § 1702.)
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		Here, Plaintiff has shown that "the agent designated is no longer authorized to act" and that "no agent has been designated and [] no one of the officers or agents of the corporation specified in Section 2110 can be found after diligent search." (Corp. Code, § 2111, subd. (a).) Plaintiff has also presented evidence that Defendant EndlessOne has not made the statement required by Corporations Code section 2105. (See Correll Decl., ¶ 4.) Therefore, the court will order that service be effectuated by personal delivery to the California Secretary of State or to an assistant or deputy secretary of state of one copy of the process and order. Plaintiff shall give notice of this ruling.
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